

Plaintiff bellies Defendants' contention. First, the March 2023 pre-litigation demand letter was prepared by Plaintiff's former counsel who did not have the factual benefit of newly produced documents, the deposition of the Defendant Kris Hansen, and the re-interview of the Plaintiff when assessing the matter. (Reply at p.5: 23-26.) Second, Plaintiff argues that nowhere does the March 2023 demand letter state that Ms. Casey opposed the \$10,000 customer deposit payments, that she disclosed information about them, or that she was retaliated against for making such disclosures. Nor does the letter contain any statement connecting Ms. Casey's assignment to work with Defendant Hansen—or any other adverse action—to retaliation for opposing unlawful business practices, which is the gist of the proposed amendment. (Reply at p.6: 1-4.)

Plaintiff Met Their Burden to Amend Their Pleading

Plaintiff has fulfilled all its procedural requirements to amend her Complaint. Plaintiff's motion included a copy of a serially numbered proposed amended complaint and included a list of proposed allegations to be added and deleted. (CRC Rule 3.1324(a); See Teti Decl., Exhs. 1-2; Motion pp. 6-9.) Plaintiff's motion was supported by two of counsel's declarations which specified the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and why the request for amendment was not made earlier. (CRC Rule 3.1324(b); See Macek Decl., ¶¶ 2-9; Teti Decl., ¶¶ 15-16.)

Plaintiff's FAC

Defendants oppose this motion on the grounds that the proposed FAC has claims that are legally defective. Arguments regarding the merits of the claims alleged in the proposed FAC are more properly addressed in a challenge to the FAC after it is filed, whether by demurrer, motion for judgment on the pleadings, or motion for summary judgment. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760-761; *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048 ["[T]he preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings."].)

The case has been pending for approximately two years, including an 11-month appeals period. There is no trial date set, there have been no challenges to the pleadings, and discovery is ongoing. There is no prejudice to Defendant by allowing the amendment, as they will have ample opportunity to contest its merits "by appropriate proceedings." (*Kittredge Sports Co.*, supra, 213 Cal.App.3d at 1048.)

Conclusion

As analyzed above, **Plaintiff's motion to for leave to file a FAC is granted.**

4. 9:00 AM CASE NUMBER: C24-01096
CASE NAME: FRANCISCO CORDOVA ALFARO VS. MENLO WESTRIDGE AFFORDABLE PARTNERS, L.P.
***HEARING ON MOTION IN RE: LEAVE TO FILE A FIRST AMENDED COMPLAINT**
FILED BY: CORDOVA ALFARO, FRANCISCO
TENTATIVE RULING:

Plaintiff Francisco Cordova Alfaro's Motion for Leave to File First Amended Complaint, filed on August 14, 2025, is unopposed and is **granted**. Plaintiff's First Amended Complaint, attached as Exhibit A to

Duncan McGee Nefcy, shall be filed and served no later than ten (10) days from the date of this hearing. An answer or reply shall be due no later than thirty (30) days from the date of service. No appearance is required at the hearing on December 3, 2025. The Court will execute the proposed order lodged with the Court on August 20, 2025.

5. 9:00 AM CASE NUMBER: C24-02750
CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFF'S FIRST AMENDED COMPLAINT**
FILED BY: BJ'S RESTAURANT INC.

TENTATIVE RULING:

The hearing on Defendant BJ's Restaurant's Demurrer and Motion to Strike is continued, *sua sponte*, to February 18, 2026 at 9:00 a.m. No appearance is required on December 3, 2025.

6. 9:00 AM CASE NUMBER: C24-02750
CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.
HEARING ON DEMURRER TO: FIRST AMENDED COMPLAINT
FILED BY: BJ'S RESTAURANT INC.

TENTATIVE RULING:

The hearing on Defendant BJ's Restaurant's Demurrer and Motion to Strike is continued, *sua sponte*, to February 18, 2026 at 9:00 a.m. No appearance is required on December 3, 2025.

7. 9:00 AM CASE NUMBER: C25-00170
CASE NAME: ANTOINETTE CLARK VS. HAE RHEE
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL RE: GEORGE HOLLAND**
FILED BY: CLARK, ANTOINETTE

TENTATIVE RULING:

On September 16, 2025 Counsel George Holland filed a Motion to be Relieved as Counsel for Plaintiff Antoinette Clark. On November 24, 2025, this motion was withdrawn. The hearing on December 3, 2025 is vacated. No appearance is required.

8. 9:00 AM CASE NUMBER: C25-00261
CASE NAME: KIKI BROWS VS. RAMANUJAN GROUP LLC
***HEARING ON MOTION IN RE: AN ORDER GRANTING HER AUTHORITY TO MAINTAIN THE**
SURVIVAL CAUSES OF ACTION ON BEHALF OF ROWENA DAVIS, AN INTERESTED PERSON
FILED BY:

TENTATIVE RULING:

The Parties are ordered to appear remotely or in person at the hearing on December 3, 2025 at 9:00 a.m.. The Court is unable to locate the moving papers related to this Motion and requires further information.